

MUTUAL NON-DISCLOSURE AGREEMENT

Acme Corporation & Counterparty — Demo Document

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of the date of last signature below (the "Effective Date") by and between **Acme Corporation**, and the undersigned counterparty (each a "Party" and together the "Parties").

1. Confidential Information

"Confidential Information" means any non-public information disclosed by either Party, whether oral, written, or electronic, that is designated confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure, including business plans, product designs, customer lists, financial information, and technical data.

2. Obligations

Each Party agrees to (a) hold the other Party's Confidential Information in strict confidence, (b) not disclose it to any third party without prior written consent, and (c) use it solely to evaluate or pursue a business relationship between the Parties. Each Party shall protect the other's Confidential Information with at least the same degree of care it uses for its own, and no less than reasonable care.

3. Exclusions

Confidential Information does not include information that (a) is or becomes publicly known through no breach of this Agreement, (b) was rightfully known prior to disclosure, (c) is rightfully received from a third party without restriction, or (d) is independently developed without use of the other Party's Confidential Information.

4. Term

This Agreement remains in effect for two (2) years from the Effective Date. The obligations of confidentiality survive for three (3) years following termination or expiration.

5. General

This Agreement is governed by the laws of the Province of Ontario. It may be executed electronically and in counterparts, each of which is deemed an original. Electronic signatures are valid and binding under applicable law.

AGREED AND ACCEPTED

Signature: _____

Name: _____

Title: _____

Email: _____

Date: _____